THETHELANI MBAMBO (nee MASEKO)

Versus

NDODANA MBAMBO

IN THE HIGH COURT OF ZIMBABWE.
MOYO J
BULAWAYO 6 NOVEMBER 2024, 27 FEBRUARY 2025, 26 NOVEMBER 2025 AND 11 JUNE 2026

Chamber application for recusal

V. Chikomo, for the applicant
T. Sephuma, for the respondent

MOYO J: This is an application for my recusal and it is as follows:-

That on 5 November 2024 a case management meeting prior to trial was held in terms of the rules in my chambers. That I asked a number of questions on the issues referred to trial and proceeded to make decisions on the following issues without hearing evidence on same.

1) That the matrimonial property in Matsheumhlophe owned by respondent and applicant be shared equally between the parties.

2) That in maintenance of the minor children the defendant pays school fees, examination fees, buys uniforms, statutory and all other school requirements. That the defendant shall retain the minor on his medical aid and funeral policy until the child attains the age of the majority or becomes self-supporting whichever occurs first.

3) That defendant is awarded access of the minor child one week during school holidays.

The rest of the issues were referred to trial and did commence.

It is alleged that after the court adjourned and without my involvement and knowledge respondent's legal practitioner indicated that his client needed to talk to applicant about children. They agreed with their legal practitioners. Her legal practitioners left and respondent and herself discussed issues of the welfare of their children. It is said that instead of discussing

that alone respondent proceeded to discuss the 2 outstanding issues, namely the Ntabazinduna and Pretoria properties.

During their discussion it is alleged the respondent's legal practitioners interjected 3 times asking if they had reached a settlement. That respondent's legal practitioner had gone into the Judge's chambers 3 times and that each time he indicated that they needed to reach a settlement as the Judge was waiting for them. That she refused to consent to anything in the absence of her lawyer. Her lawyer then wrote to respondent's lawyers with a view to discussing the matter with them. They wrote to the Registrar with a view to discussing their concerns with no response. The matter was postponed to 21 January 2025 but did not take off because the Judge was in appeals. It was re-set for 26 February but postponed due to the fact that applicant's counsel had given birth. The matter was eventually set for 9 June and the lawyers gathered in Court B later to move to the Judge's chambers where they allegedly found respondent's counsel and his client outside the Judge's chambers at the foyer. In the answering affidavit, an affidavit by a legal practitioner one Butshe-Dube is attached and the relevant portion reads

> "when we arrived at the first entrance from the corridor, I confirm I saw respondent's lawyer standing in the Judge's foyer with a gentleman as the door was open."

The irrelevance of Butshe-Dube's affidavit

I have read Butshe Dube's affidavit and I wonder what he is testifying to. That he came to court on a specific date, to argue his own cases. That he saw respondent's lawyer and respondent standing outside the Judge's chambers by the foyer. What he seeks to support by virtue of that baffles me. If he saw them standing outside the Judge's chambers by the foyer what does that have to do with the application that he is supporting? That because a lawyer and a litigant stood outside a Judge's chambers by the foyer without entering and talking to the Judge or without the Judge exiting and talking to them, then he authors an affidavit in support of a serious application as that of recusal? This defies logic and only speaks to a hired witness where everything is thrown in, no matter how meaningless or of no value, so that a Judge is trashed and removed from a case for hidden reasons known to the litigant, Judge shopping being the most probable.

I am actually surprised by the meaning or significance of the affidavit because there is no grain of matter qualifying to be in support of a recusal application in the affidavit. In fact, this affidavit shows conversely that all effort is being made to build a non-existent apprehension of bias against a Judge who was probably sitting at that time in her office, busy working, with no duty to establish who is standing where outside her chambers.

I come to work, get into my office and start working. The High court building is very secure from my experience working here, I have never bothered myself about what happens outside my chambers neither have I ever checked it so that I can be held personally liable for it. Butshe-Dube has just been roped in to try and support a weird application through a weird testimony.

The chronology of events as they unfolded

I was allocated the main matter for trial. I set the matter down for trial but as always, with any other matrimonial matter I hold a case management meeting in chambers with the parties and their legal practitioners in terms of Rule 68(7) with a view to either thrash the issues for a smooth flowing trial or to settle those that can possibly be settled. As a matter of practice if all the matters are settled, then the parties are directed to draw a consent paper and proceed to finalise the matter on the motion roll. If some of the matters are settled, the Judge and the parties agree that they will be considered settled and at the end of the trial an order will be issued as agreed. The rest of the unsettled issues will then be heard in trial and judgment rendered.

This matrimonial matter was no different in my view. In fact it was not a complicated matrimonial estate where there are numerous assets that both the court and the parties would struggle to find equity in their distribution.

The issues for trial were:-

The redistribution of 3 immovable assets, one in Matsheumhlophe being the matrimonial home, one in Pretoria and one in Ntabazinduna and the welfare of the children.

A discussion was then held with the parties actively participating and providing information.

Both parties actively participated volunteering information until an agreement was reached that they would share the Matsheumhlophe home equally but they could not agree on the Pretoria property and the Ntabazinduna property resulting in the 2 being referred to trial. Also resolved were the issues of the children's welfare.

Applicant says in response to the accusation for recusal I asked why a formal complaint had not been made. I did because I was surprised that the complaint is not just a reasonable apprehension of bias by a litigant, but it is a complaint of misconduct of the Judge colluding with another lawyer, so I was of the view that it is more than recusal, it is about an issue that warranted a formal complaint and an investigation in my view. That is the reason I enquired about a formal complaint as the allegations are serious. I would have expected applicant's lawyer a fairly senior counsel, to appreciate the gravity of the allegation and that they could not only be used for recusal but misconduct as well. Even now I still hold the view that no complaint was made to pave way for an investigation because applicant and her lawyer are aware that they are just trashing the Judge to achieve selfish ends but that there is no substance in the complaint.

The problem with applicant's complaint

Applicant says the Judge raised issues and settled them without the parties' input and without them contributing in any manner. I will show why this is not true.

The information that the property was acquired by defendant and registered in the names of both parties came from the parties. Plaintiff initially wished to retain the Matsheumhlophe property to the exclusion of the defendant who according to the parties acquired the property and had it registered in both their names.

After some debate and engagement the parties agreed on the resolved issues, which is why plaintiff's email to her legal practitioners does not complain about that settlement. Neither does plaintiff's counsel complain about that issue to the respondent's lawyers. It is because plaintiff was indeed an active participant resulting in the issues being resolved.

Again, on the issue of access, parties debated it with their reservations and interests until just one week of the school holiday was compromised on.

The parties actively engaged a lot of issues and the children's needs.

On the issue of maintenance again the parties actively discussed it and came out from them what the needs were, which ones were being met and how. Of course the court participated in a bid to guide and assist them.

To show that the court had no interest and never imposed itself on the parties, the Ntabazinduna property and the Pretoria property were referred to trial as the court and the parties were of the view that they could not be resolved and evidence needed to be led. The Ntabazinduna property the sticking point was that plaintiff claims that whilst it is in her name, it is in fact not hers, but her brother's while defendant claims that it is their matrimonial asset. This being incapable of being settled it was thus referred to trial. If the court was imposing itself on the parties the Ntabazinduna property would also have an order being made and imposed on the parties. If the court could impose itself on anything why would it fail to do the same with this property?

Again, the aspect of the Pretoria property could not be resolved resulting in the 2 issues agreed on as outstanding being referred to trial.

It would not make sense for the court to impose a settlement on the parties on the Matsheumhlophe, access and maintenance issues, but decide not to impose itself on the Ntabazinduna and Pretoria properties. This shows that the plaintiff is not being candid with the court.

Again, plaintiff does not explain in para 5.3 of her founding affidavit why the matter then proceeded to court. She avoids confirming that the matter was referred to court for a hearing and determination of the outstanding issues. In her email to her lawyer applicant says:-

> "After having discussed the children, he then proceeded to try and negotiate on the remaining terms of the divorce in regards to the Ntabazinduna property. He also touched on the subject of the Ntabazinduna property when it was to be judged on 21 January 2025."

It does not make sense that a Judge who was deciding matters and imposing decisions on the parties, then decided to impose some and leave some.

Plaintiff referred to the issues as the remaining issues because indeed by agreement of all parties, they were the remaining issues. She further rightfully stated that the matter was to be judged on 21 January 2025 because the matter had been provisionally postponed from the

6th of November 2024 to 21 January 2025 although it was not for judgment but for continuation of trial.

I do not know about their engagement with respondent's counsel because I was not privy to that meeting and the matters discussed therein. According to me the matter had been put to rest for that day and it was to resume on 21 January 2025, the next date for continuation of trial. In fact it is this meeting in my view which gave birth to all those issues after perhaps the parties fell out of each other and now the only way to throw away even the initial settlement is to batter the Judge.

I do not understand what respondent's counsel would be coming to my chambers for and in fact he never came because there was absolutely no reason for him to.

The parties had already failed to settle the 2 outstanding issues resulting in me commencing a trial on them. I do not understand the logic of waiting for a settlement on issues that had failed to be settled and a trial already commenced on them with a future date already given.

A closer look at the letter dated 8 November 2024 shows that whilst the court had already postponed the matter to 21 January 2025, and had put the matter to rest until then, the parties decided to engage each other unbeknown to the Judge.

Paragraph 2 therein reads thus:-

> "Your client then indicated that he does not wish to return to court in January 2025 and suggested that the parties settle the matter amicably."

Contrary to the court, which was prepared to sit and hear the matter on 21 January 2025 as directed, it is respondent's counsel and not the court which did not want the January 2025 sitting. The court had already postponed the matter to 21 January 2025, because it wanted to complete its business of finalising the trial then. The letter is also clear as to the cause of applicant's complaint

1) Respondent's counsel engaging their lawyer in their absence.

2) That he was entering and exiting the Judge's chambers.

It is important to note that this letter does not in any way complain about the settlement reached by the parties in my chambers on the morning of the 6th of November 2024. Clearly that is so, because there was never anything untoward that happened on that day giving birth to the settlement on the other issues.

The letter clearly states that because of the circumstances contained therein their client has expressed concern over the matter continuing being heard by the Honourable Judge and as such they are instructed to apply for the Judge's recusal.

The basis for the recusal is very clear per that letter, it is the alleged unethical conduct by respondent's counsel and his being seen entering and exiting the Judge's chambers. So there was never a complaint or reason for recusal regarding the pre-trial case management meeting and the trial itself as it did commence. It was about respondent's counsel's conduct which had absolutely nothing to do with the Judge. It is important to note that there are 2 doors that a person goes through before they can get into the Judge's chambers, and a person sitting by the civil registry will only see a person enter the outermost door which also leads to court C. It thus becomes highly unlikely that applicant saw the respondent's counsel enter the Judge's chambers as she would have had to follow him to see that he went through the 2nd door as well and finally entered the 3rd door being Judge's chambers. It thus cannot be true that she saw the respondent's counsel enter the Judge's chambers except that perhaps she saw him walk and go through the outermost door towards the Judge's chambers.

I would not know what respondent's counsel did or did not do outside my chambers on the day in question because whilst seated inside the chambers I cannot perceive or know what is happening outside of them. Of course what I know as a matter of fact is that respondent's counsel never came to my chambers because he had no reason to and I never saw him. The trial had commenced on the outstanding issues and the court had already pronounced itself on the next date of hearing which was 21 January 2025, respondent's counsel had no business coming to my chambers on a matter that had already been postponed to 21 January 2025.

What applicant does not understand is that with judicial authority vested in me, if I was of the view that the parties could engage further and strike a settlement on the outstanding issues, I had the authority not to commence the trial if I thought it was not necessary, I was simply going to direct the parties to go and negotiate further on the outstanding issues giving

them some guidelines on how to go about it and what to consider. I was never duty bound to commence the trial as the chairperson of the proceedings if I was of the view that they could resolve the issues. I would thus not need respondent's counsel to put pressure on applicant in the absence of her lawyers. I was not even aware that parties were meeting each other about anything. There would be no need to have respondent's counsel pace up and down between where the parties were seated and my chambers because I could simply not have started the trial and ordered them to go and try to settle the outstanding issues if I was of the view that a settlement was indeed possible.

The first set of issues was resolved in good faith by all present and an acknowledgment made that it would be difficult to resolve the other 2 causing us to commence a trial which I would not have commenced if I did not want to. Civil trials are allocated to a Judge who does not choose them, I set them down in accordance with my availability and at my convenience. The set down of 6 November 2024 was never imposed by anyone on me. If I felt that the parties needed more time to engage I would have simply ordered as such. Respondent's counsel would be irrelevant to that consideration. It therefore defies logic that I would elect as a chairperson of court proceedings, to commence trial on the 2 outstanding issues and then decide to use respondent's counsel to force applicant into a settlement. It just did not happen because there is absolutely no reason for it.

As can be seen the cause of the complaint is clearly stated by applicant to her lawyer via email, and her lawyer to the respondent's lawyers via the letter dated 8 November 2024.

Nowhere in those correspondences is the Judge's conduct during the pre-trial case management and the trial itself, impugned, because both applicant and her legal practitioner knew that there was absolutely nothing validly wrong at that juncture, with the Judge's conduct but they decided to use this respondent's counsel's pacing up and down between chambers as a reason for my recusal. The matter was even postponed from 21 January 2025 due to my being on the Appeals roll to 26 February 2025. On 26 February 2025, it could not proceed because applicant's counsel had just given birth, so it was then later given 9 June 2025. On 9 June 2025, I then became aware of the allegations and the intended move for my recusal. I then directed applicant to file a formal application as I had never seen respondent's counsel in my chambers.

On the morning of 9 June 2025, and after questioning the applicant to try and appreciate what exactly happened outside the chambers as I was not there, and I never saw respondent's counsel in my chambers, I then directed that they should file a formal application for my recusal as that is the procedure and so that applicant puts the complaint on oath. Upon realising that there is no substance at all in the complaint, they then decided to revert to the meeting of 6 November 2024 in the morning, where clearly they never had a complaint, and decided to spice up the otherwise would be a hollow application for my recusal. That explains why for the 1st time in June 2025, we hear about a complaint on the conduct of the Judge at the pre-trial meeting yet it never arose in their initial letter of complaint.

The conduct of the Judge at the trial was never complained of at the initial stages of the complaint because there is nothing untoward that the Judge did at the trial. However, in paragraph 8 of her founding affidavit for the first time applicant speaks to hostility, shouting and reprimanding both in open court and in chambers and that her legal practitioner was instructed to withdraw documents from the court record given little time to do so and that respondent's counsel was awaited for 30 minutes and that when he finally returned, the court seemed undisturbed by his conduct. I cannot recall what precisely happened in the time allegedly given to applicant's counsel, but if she was given 15 minutes it means I believed as the chair of the proceedings at the time that it would be adequate and if it was not, I do not remember an application for more time being made and it being refused. Applicant's counsel is silent on this important aspect for her elaboration. Without her input it is difficult to understand the complaint. I have never in all court proceedings I have conducted in 13 years, sat in court for 30 minutes waiting for parties to arrive. That cannot happen and it never happened.

Again this is raised for the first time in the chamber application of June 2025 because in November 2024 it was never mentioned because it never happened. The crux of the matter in a recusal application would be the hostility and the bias of the Judge if it happened, but because it did not happen, having been directed to file a formal application, applicant decided for the first time in June 2025 to refer to the conduct of proceedings that she did not have any issue with soon after their completion in November 2024.

I am not surprised that once again, on 9 June 2025, as if respondent's counsel lives or works in my chambers, he is found standing outside my door. I am not responsible for where

people decide to wait for matters to be heard by me, I am not privy to the communication given to them or any directives of when and where a matter would be heard. I do not even understand the significance of an attorney, standing outside my door waiting to be allowed inside at the appropriate time. Applicant and her lawyer do not allege that they found respondent's counsel inside the chambers, or talking to me or something, they say they found them at the foyer, outside the door to my chambers, how that translates to bias or prejudice, is beyond me to understand.

It is my considered view that applicant for some reason, dislikes the trajectory the matter has taken, not because anyone is at fault, perhaps on an afterthought she wants things moving differently, and the only way to attain that would be to have me recuse myself and have the matter started afresh. I do not know if respondent's counsel paced up and down the chambers but he certainly did not come to my chambers because I never saw him. I always entertain lawyers and litigants in the presence of my assistant who first comes to tell me that a person needs to see me and establishes the reasons. That is why we have all these vague and unfounded complaints. Applicant stated that her legal practitioner was shouted at, there is no words being said to substantiate that because she does not state what the court said in the shouting and this is because the court never shouted at all. Even the legal practitioner, a fairly senior lawyer does not give any details in her supporting affidavit because there are none to give.

The applicant is trying to throw in anything that could validly lay a ground for recusal, but the problem is that applicant already stated in her email to her lawyer and in their letter, the cause of their complaint. It absolutely had nothing to do with the Judge's conduct. It is only after being told that they needed to file a formal application which they obviously realised would not stand on that vague allegation that they decided to come up with new versions to the complaint.

Applicant also does not state that the matter did not take off on 21 January 2025, and it was postponed to 26 February 2025. That on 26 February 2025, her counsel was not available having recently given birth. That an associate appeared at the hearing seeking a postponement to June 2025 as that is when plaintiff's counsel would be back at work, causing the court to postpone yet again the matter to 9 June 2025 as suggested by her counsel. Again, plaintiff omits to mention that at that hearing respondent's counsel applied for punitive wasted costs

citing that plaintiff's counsel must have known when she would give birth and that now his client had travelled and incurred costs for nothing. She does not mention that the court refused the costs as asked as they were unjustified. This is deliberately left out because applicant is on a mission to paint the Judge in black at all costs. If it is true that the court is hostile to both lawyer and litigant, then the court would have readily acceded to the request for punitive costs.

If at all, the court was acting in cahoots with respondent's counsel in wanting the matter to be finalised soon certainly the court would have refused a postponement from February to June, a period of 4 months. Applicant is not being candid with the court, she has her own issues with defendant and their lawyers and for that she has ulterior motives that are unsubstantiated by the trajectory taken by the case on the ground.

It is also common cause that applicant did not file the application for recusal within the 2 weeks agreed by the parties on the 9th of June. Applicant's counsel requested for an extension which was granted. There is therefore no trait of bias at all in the trajectory the matter took.

Even after the application was initially set down, applicant's counsel advised that they were not ready as they intended to instruct an advocate to argue the matter. The matter was removed from the roll with the parties being advised that they would be advised of a later date. That is inconsistent with the allegations that the Judge was using respondent's counsel to settle the matter early. It is also inconsistent with any bias by the court towards applicant and her counsel. This is clearly a manufactured recusal bid in order to remove a Judge who has not offended the principles of justice off the case for reasons best known to applicant and her lawyer as the ones presented herein are definitely not supported by the trajectory that the case has taken. All the allegations seem to be a creation of applicant and her legal practitioners frantically building a case in order to achieve their own ends best known to them.

I accordingly hold that factually no cogent ground for my recusal has been made.

I now turn to look at the law relating to applications of this nature.

The law on recusal

The reasonable apprehension of bias was ably articulated in the case of *African Echo Pty Ltd and 2 Others* v *Inkhosatana Gelane Simelne* Civil case 48/2013 wherein his Lordship

MOORE JA quoted Professor Okpalupa in his paper titled *The Problem of proving actual or apparent bias:- an analysis of contemporary Developments in South Africa* where he says:-

> "The courts … approach an allegation of apprehension of bias with the presumption of impartiality. This is the first hurdle to surmount to show that a Judge had conducted proceedings in a way that raises an apprehension of bias. The courts take the view that given the nature of the judicial office and the oath of office of superior court Judges, there is no presumption that such a highly dignified public functionary would discharge his/her important judicial office with favour, prejudice or partiality. On the other hand, the rationale for the presumption is founded on
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> (a) public confidence in the common law system, which is rooted in the fundamental belief that those who engage in adjudication must always do so without bias or prejudice and must be perceived to do so.
> (b) impartiality is the fundamental qualification of a Judge and the core attribute of the judiciary. It is the key to the common law judicial process and must be presumed on the part of a Judge."

In Blackstone Commentaries on the Laws of England 111 361 restating th principle in *R* v *S* 1997 (3) SCR 484, CORY J said:-

> "Courts have rightly recognised that there is a presumption that Judges will carry out their oath of office … This is one of the reasons why the threshold for a successful allegation of perceived judicial bias is high. However, despite the high threshold, the presumption can be displaced with "cogent evidence" that demonstrates that something the Judge has done gives ground to a reasonable apprehension of bias."

In the facts before me, I have not seen any cogent evidence as clearly the fact that we resolved some issues and left out others, and that I was ready to try the remaining issues, shows that it is not correct that I wanted to rule without hearing evidence. In fact it gives credence that I only intended to settle that which could be settled and proceed to try that which needed to be tried. There can be no cogent evidence to substantiate a reasonable apprehension of bias on my part. The letter dated 6 November which kickstarted this whole matter, clearly did not have anything against the judicial officer. It is the lawyer's conduct which I know absolutely nothing about and cannot answer for that led to that grievance. Which is precisely the reason why lawyers wanted to meet each other and talk to each other about issues concerning them and their clients.

It cannot be a cogent reason justifying a reasonable apprehension of bias, that I heard a matter in chambers, resolved what could be resolved, went into court to deal with what could not be dealt with and then I engage defendant's lawyer to panelbeat the parties into a settlement.

I already knew the remaining issues could not be settled. I already took the decision of trying them so there was no room for negotiation except at the instance of the parties if they so wished.

I have judicial authority vested in me, I try matters and pronounce decisions, why should I be asking a lawyer for one party to force a settlement? This is where the cogency of the reasons by applicant is lacking. Even if I had not wanted to try the matter on the appointed date, thinking that the parties could settle, I would simply remove the matter from the roll and give the parties more time to discuss and settle if I really believed that chance was there. I had that authority so why would I be using defence counsel? It does not make sense at all. I sometimes send parties to go and try to settle a matter if I believe a settlement is possible, and I give them the parameters and ideas on what I think they should take into account in a bid to settle it. So in this instance I was waiting for defence counsel to force a settlement without my guidance to both parties as to what they should consider? That could not have happened as it clearly did not.

It clearly defies logic and for that it cannot be a cogent reason for substantiating a reasonable apprehension of bias. Applicant seems to believe that I went into court to try a matter that I believed could be settled, I would never do that because I chair the proceedings before me and I also manage my own work. I was never going to start a trial if I did not want to so that I then use defence counsel to obtain a settlement. It clearly defies logic.

> "In considering the numerous allegations based on the apprehension of bias in *S* vs *Bassan 2*, the Constitutional Court held that the presumption in favour of the trial Judge must apply. This means, first that the court in considering a claim of bias must take into account the presumption of impartiality. Secondly in order to establish bias, a complainant would have to show that the remarks made by the trial Judge were of such a number and quality as to go beyond any suggestion of mere irritation by the Judge caused by a long trial. It had to be shown that the trial Judge's conduct was a pattern sufficient to dislodge the presumption of impartiality and replace it with a reasonable apprehension of bias. Thus, the two-fold emphasis serves to underscore the weight of the burden resting on a person alleging judicial bias or its appearance. This double requirement of reasonableness also highlights the fact that mere apprehensiveness on the part of a litigant that a Judge will be biased even a strongly and honestly felt anxiety is not enough. The court must carefully scrutinise the apprehension to determine if it is, in all circumstances, a reasonable one." *Thulani Rudolph Maseko and Another* v *Justice Simelane and 2 Others* 2014 SZHC 101.

In *Queen* v *Watson, Ex parte Armstrong* 1976 B6 CLR 248 at 258-263 MC HUGH JA had thus to say:-

> "In the case of a professional Judge who is training tradition and oath or affirmation require him to discard irrelevant immaterial and the prejudicial, a conclusion that there is a reasonable apprehension that he is biased should not be drawn lightly."

Indeed, otherwise litigants will come up with fancy stories for the purpose of removing a Judge off a matter for their own selfish and unknown reasons, while in the process scandalising the courts.

In the case of *The Supreme Court of Illinois in People* v *Hall,* 114 111, 2n 376, 499 NE2d 1335 999 102 111. Dec 322 1986 upholding a trial Judge's refusal to recuse himself for a case after the defendant had had an outburst in the courtroom and had struck his attorney and the trial Judge the court said thus:-

> "we cannot presume a failure of impartiality of a trial Judge even under extreme provocation. Judges are called upon to preside over the trial of onerous cases and persons. By definition however a trial Judge is required to ignore provocation and pressures from individuals … To hold that the law requires a substitution of Judges under circumstances similar or comparable to those here would invite misconduct toward Judges and lawyers, and a practice would develop that the grosser the misconduct the better the chances to avoid trial with an undesired Judge or lawyer."

In my view this applies to the applicant's submission that now that she has made allegations of bias against the Judge, no matter how unsubstantiated, it must now be a reason for recusal. That would mean that each litigant who wants to judge shop, will come up with flimsy and easy to create allegations against a Judge, just for the sake of saying now that I have made allegations against the Judge I will no longer get a fair trial. That would be an insult to the judiciary as a whole and an affront to the presumption of impartiality.

In *Gaetsaloe* v *Debswana Diamond Co Pty Ltd* Civil Appeals No. CA CLB-027-08 RAMODIBEDI JA said thus:-

> "As a matter of first principle it is of utmost importance to recognise that our judicial system is based on independent and impartial tribunals. Essentially for that matter, the courts must also be seen to be independent and impartial in order to instil public confidence. It cannot be over emphasised that public confidence is in turn an indispensable feature in any credible judicial system such as ours. The effectiveness of the system depends upon the presumption of impartiality. Indeed, Judges are sworn to do justice without fear, favour or prejudice and in accordance with the law. They are sufficiently equipped to so by virtue of their special training."

CJ NGCOBO in Bernet's case para 35 had this to say:- (*Bernet* v *Absa Bank Ltd* 2010 ZACC 28)

> "The presumption of impartiality and the double requirement of unreasonableness underscore the formidable nature of the burden resting upon the litigant who alleges bias or its apprehension. The idea is not to permit a disgruntled litigant to successfully complain of bias simply because the judicial officer has ruled against him or her. Nor should litigants be encouraged to believe that, by seeking the disqualification of a judicial officer, they will have their case heard by another judicial officer who is likely to decide in their favour. Judicial officers have a duty to sit in all cases in which they are not disqualified from sitting. This flows from their duty to exercise their judicial function. As has been rightly observed, Judges do not choose their cases, and litigants do not choose their Judges. An application for recusal should not prevail unless it is based on substantial grounds contending a reasonable apprehension of bias." (emphasis mine)

Whilst a Judge should readily recuse himself where there is a reasonable apprehension of bias, as the Australian High Court correctly observed in the case of *Ebner* v *Official Trustee* 2000 205 CLR 337.

> "if the mere making of an unsubstantiated objection were sufficient to lead a Judge to decline to hear a matter or decide a case, the system would soon reach a stage where, for practical purposes, individual parties could influence the composition of the bench and that would be intolerable."

Especially like in this case where allegations of a lawyer pacing up and down the Judge's corridor or standing outside the Judge's chambers, how on earth does a Judge become responsible for what happens outside their office, that which they can neither see nor control. Such allegations are very dangerous against a Judge because they can be easily made. A litigant can say I saw the lawyer standing outside the Judge's office, therefore the Judge must be removed. There are not even allegations that the Judge was seen talking to and entertaining the lawyer. So if such allegations lead to recusal, the next allegation will be I saw the Judge standing under a marula tree with the lawyer hence they must be removed. Bare allegations that carry no substance for either investigation or verification. That cannot be allowed in my view.

> "There is a danger that a judicial officer may be over critical of his own conduct and concede too readily to an application for recusal. Should a judicial officer do this, he would be hampering the administration of justice, rather than aiding it. Judicial officers have a constitutional obligation to administer justice without fear or favour and must sit in any case in which they are not under an obligation to recuse themselves. The duty to sit where not disqualified is equally as strong as the duty to not sit where disqualified, should a judicial officer therefore recuse himself without there being justification for such recusal, he would in fact not be administering justice without fear or favour." SARFU para 46-47 (*President of the Republic of South Africa and Others* v *SARFU and Others* 1999 (4) SA 147 (CC) (SARFU case)

Whilst recusal is a vital tool in a constitutional democracy which a litigant can use if he has a reasonable apprehension that the judicial officer in his case will be biased, care should be taken however, to ensure that this mechanism to ensure fair proceedings is not abused and degenerates into Judge shopping. The test to be applied is objective and both the person and the apprehension must be reasonable. Any factor can be taken into consideration by the court in its determination as to whether there exists a reasonable apprehension. But judicial officers are bound by the confines of the test and they cannot go beyond it. Unless the reasonable apprehension of bias test is satisfied, there can be no justification for recusal. An unfounded or unreasonable apprehension is not a justifiable basis for a recusal application.

The applicant must present cogent facts to the court in support of his application to discharge the heavy onus. Judicial officers should realise that they have a constitutional duty to sit in every matter. They should only recuse themselves in instances where there is actual bias or where the reasonable apprehension of bias test is satisfied."

In the SARFU case supra it was further held that:-

"The question is whether a reasonable objective and informed person on the correct facts reasonably apprehend that the Judge has not or will not bring an impartial mind to bear on the adjudication of the case, that is a mind open to persuasion by the evidence and the submissions of counsel."

Further that:-

"The apprehension of the reasonable person must be assessed in light of the true facts as they emerge at the hearing of the application. It follows that incorrect facts which were taken into account by an applicant must be ignored in applying the test." SARFU case (supra)

In the case of *South African Commercial Catering and Allied Workers Union and Others* 2000 (3) SA 705 (SARCU) case

"two considerations are built into the test itself. The first is that, in considering the application for recusal, the court as a starting point presumes that judicial officers are impartial in adjudicating disputes. This built aspect entails two further consequences. On the one hand, it is the applicant for recusal who bears the onus of rebutting the presumption of judicial impartiality. On the other, the presumption is not easily dislodged. It requires cogent or convincing evidence to be rebutted. The second in built aspect of the test is that "absolute neutrality" is something of a chimera (a fanciful illusion) in the judicial context. This is because Judges are human. They are unavoidably the product of their own life experiences and the perspective thus derived inevitably and distinctively inform each Judge's performance of his or her duties, but colourless neutrality stands in contrast to judicial impartiality – a distinction the SARFU case itself vividly illustrates."

In essence what the above paragraph seems to suggest especially regarding some comments about life experiences in a bid to guide parties means those should not be taken as

bias. A Judge cannot assist parties with a settlement in my view without making some comments that are only meant to guide and help the parties. That certainly cannot mean that when the matter is being tried and evidence is being led and authorities are being cited a Judge's mind will stay shut. In any event even the alleged comments are not of a gravity as to formulate a reasonable apprehension of bias. A Judge should be allowed to guide the parties and where the guidance is not well received the matter ends there or proceeds to trial so that all the relevant facts and issues are canvassed to achieve justice between litigants. It is alleged that the lawyer was given 15 minutes to fix an index. The litigant who does not appreciate if that time was adequate or not alleges that. The legal practitioner does not expand on that point so that it is clear what the break was for and how much time would have been adequate. Unfortunately this is just mentioned hurriedly and in passing without sufficient detail to buttress a request for recusal. Judges chair court proceedings and in so doing they direct them. That cannot be a ground for bias if the Judge felt the time was enough. In any event, the legal practitioner could have asked for more time if they had failed to comply with the given time, explaining the difficulty with the given time limit. That did not happen. The court was never advised nor was an indulgence sought that the time was not sufficient. That cannot formulate a basis for impartiality even if it did happen. Applicant is throwing in insignificant occurrences in a desperate bid to attain a recusal. Unfortunately the bar for recusal is very high, the applicant should give cogent grounds sufficient, objectively to displace the presumption of impartiality and throwing in every little thing exaggerated out of context does not pass the test.

HARMS JA in the case of *Take & Save Trading CC* v *Standard Bank of SA Ltd* 2004 (4) 1 SA stated thus:-

> "A Judge is not simply a silent umpire ….. Fairness of court proceedings requires the trier to be actively involved in the management of the trial, to control proceedings, to ensure that public and private resources are not wasted"

So a Judge believing that a 15 minute break should suffice to fix papers, without denying the applicant more time upon request cannot be said to be impartial.

In the South African case of *Bennet and Point* v *The State* case (supra) the court said:-

> "finally, it is acknowledged that a Judge is not just a "silent umpire" and that, while maintaining fairness and impartiality, a Judge is responsible for managing a trial to finality, both efficiently and effectively."

Of particular importance is that after the end of day on 6 November 2024, the court provisionally postponed the matter to 21 January 2025 (subject to confirmation of the Master roll for 1st term 2025). If the Judge wanted the matter finalised without trial as alleged by applicant, the postponement would not have been given. Why would a Judge postpone to 21 January 2025, 2 months away a matter that they had sought to finalise on that day. Perhaps the matter would not have been given a date if the Judge had an interest in finalising it on that day as alleged. The circumstances of this case clearly point to no substance at all on the complaint by the applicant except perhaps for reasons best known to them they have decided to batter the Judge off the case so that the matter is handled by someone else, precisely the reason why recusal should not be granted lightly lest litigants get a wrong precedent that you can just allege anything against a Judge to get them off your case. This would be an abuse of the very useful tool of recusal and it will be an affront to the presumption of impartiality.

On the basis of the aforestated reasons, I hold the view that the applicant has failed to bring up cogent allegations that offset the presumption that Judges must be considered impartial unless substantiated grounds are given to believe otherwise. If Judges are to be pushed off cases at the flimsiest of allegations that would still not be in the interests of justice.

For these reasons the application is refused with costs.

Mlothswa Solicitors, applicant's legal practitioners
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